

Court No. - 29

Case :- WRIT - C No. - 33494 of 2019

Petitioner :- M/S Raj Ratan Smelter Limited And Another
Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

Heard Sri Mayank Kumar Agrawal, learned counsel for the petitioners and Sri Mohd. Parvez, learned counsel appearing for respondent nos. 1 and 2.

The petitioners have preferred this writ petition for quashing of the recovery citation dated 21.08.2019 whereby a sum of Rs. 1,30,00,000/- is being sought to be released from him as electricity dues.

Sri Mayank Kumar Agrawal had made three submissions so as to assail the above recovery citation. The first submission is that the recovery citation has been issued without issuing a demand notice under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, the second is that the bill do not contain relevant details and the third is that they have not been provided with any interest on the security deposit of Rs. 53,00,000/- which ought to have been adjusted in the electricity bills.

The first contention that the petitioners were not issued and served with any demand notice under Section 3 of the aforesaid Act is completely misconceived as the letter of the petitioners dated 06.08.2019 is annexed as Annexure No. 3 to the petition itself mentions that the petitioners have received demand notice no. 4489 dated 05.07.2019 of Rs. 1,84,86,586/-. Admittedly, the petitioners have not discharged their liability as per the above demand notice and have accordingly made themselves liable for the recovery of the dues as arrears.

The electricity bills which are alleged to be incorrect or illegal as they do not contain the relevant details, we are of the view that such bills contains complete details and if even then, the petitioners feel that there is any incorrectness, the remedy lies by moving appropriate application under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

The contention that the petitioners have not been granted benefit of the interest on the security amount deposited by him is not tenable for the simple reason that the counsel for the respondents has produced the letter of the Executive Engineer dated 25.05.2019 which clearly states that the interest amount on the security to the tune of Rs. 3,21,975/- was adjusted in the monthly electricity bill of July 2018. Even if, the petitioners are of the view that the interest amount has not been properly adjusted, they may prefer a representation in that regard to the Executive Engineer concerned who will consider the factual aspects thereof and if necessary pass an appropriate orders. However, it would not vitiate either the demand notice or the recovery inasmuch as adjustment of interest is of a recurring nature and may be adjusted in future bills, if not done earlier.

In view of the facts and circumstances, we find no merits in this petition so as to exercise our discretionary jurisdiction. Accordingly, we refuse to exercise the said discretion in the matter.

The writ petition is ***dismissed***.

Order Date :- 23.10.2019

Vikram/-